

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

RESPONDENT'S MOTION FOR CONFIDENTIAL TREATMENT

Respondent SM LINE CORPORATION (“SM Line”), by and through its undersigned attorneys, hereby move pursuant to the Federal Maritime Commission’s (“FMC” or the “Commission”) April 21, 2023 Initial Order and 5(b) of the Federal Maritime Commission’s Rules of Practice and Procedure (the “Rules” or individually, “Rule”), 46 C.F.R. 502.5(b), for confidential treatment of SM Line’s Brief, Proposed Findings of Fact, Responses to Complainant Proposed Findings of Fact and Appendix.

On or about September 19, 2023, the parties entered into a Stipulation and Order of Confidentiality (“Confidentiality Order”). The Confidentiality Order provides for the confidential treatment of certain materials produced in discovery in this proceeding (“Confidential Information”) between the parties. The Confidentiality Order also provides that all “Confidential Material which is to be filed with the ALJ or Commission, or materials containing, reproducing, incorporating or otherwise disclosing Confidential Material shall be filed and labeled in accordance with 46 CFR § 502.5.” Under the parties Confidentiality Order, documents produced in discovery marked either as

“CONFIDENTIAL” and/or “CONFIDENTIAL – ATTORNEYS’ EYES ONLY,” and filed in this proceeding must be designated as Confidential Information.

Respondent’s Brief, Proposed Findings of Fact, Responses to Complainant Proposed Findings of Fact and Appendix includes documentation and/or deposition testimony designated by SEA and SM Line as Confidential Material. In accordance with the Confidentiality Order, SM Line is seeking confidential treatment of confidential information contained in SM Line’s Brief, Proposed Findings of Fact, Responses to Complainant Proposed Findings of Fact and Appendix, designated as Confidential Material by SEA and SM Line. Pursuant to Rule 5(b), SM Line will file a confidential and public version of its Brief, Proposed Findings of Fact, and Appendix.

For the foregoing reasons, SM Line respectfully requests that the materials and exhibits designated as confidential in its Appendix, be kept confidential and not disclosed to the public at this time.

Dated: May 15, 2024

Respectfully submitted,
/s/Wook Chung
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 15th day of May 2024, the foregoing document was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge
judges@fmc.gov

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